

Asset and Liability Mapping

Methodology: Polish Sole Proprietorship (JDG)

The strategic determination of whether to maintain a debt recovery claim within the Electronic Writ Proceedings (Elektroniczne Postępowanie Upominawcze, EPU) or to withdraw the claim and initiate a standard civil lawsuit accompanied by a motion for injunctive relief (*wniosek o zabezpieczenie roszczenia*) rests fundamentally on the precise asset profile of the debtor. The debtor in question operates a Polish jednoosobowa działalność gospodarcza (JDG) under the trade name "GPUcomputer." A JDG is a sole proprietorship, meaning the individual possesses unlimited personal liability; there is no corporate veil protecting the owner's personal assets from business debts. However, the efficacy of an asset freeze executed by a bailiff (*komornik*) depends entirely on the existence of liquid, reachable, and unencumbered assets at the exact moment the court grants the attachment order.

This comprehensive report outlines an exhaustive, ranked methodology for mapping the operational status, assets, and liabilities of the specific debtor (Mateusz Szklarski). It is designed to be executed by agentic browser tools, categorizing open-source intelligence (OSINT), restricted registries, and commercial investigative avenues. The intelligence gathered will directly inform the cost-benefit analysis of expending capital on the *zabezpieczenie* strategy.

Strategic Legal Context: The Code of Civil Procedure and Asset Liquidity

Under the Polish Code of Civil Procedure (Kodeks postępowania cywilnego - KPC), specifically Articles 730 to 757, a *wniosek o zabezpieczenie* (motion for security) requires the creditor to demonstrate two mandatory elements. The first is the plausibility of the claim (*uprawdopodobnienie roszczenia*), which is generally satisfied by producing the contract, invoices, and written acknowledgment of the debt (such as the email promising a refund). The second, more complex element is the legal interest in obtaining the security (*interes prawny*). Establishing legal interest requires proving to the court that without the immediate freezing of assets, the future execution of the final judgment will be impossible or seriously hindered. The choice between remaining in the EPU (Path A) and seeking immediate security in a regular court (Path B) hinges on the liquidity profile of the debtor's holdings. If the debtor holds easily movable or highly liquid assets—such as cash in bank accounts, cryptocurrency, or high-value electronics inventory—these can be rapidly dissipated during the 6 to 12 months required for the EPU process to yield an enforceable payment order (*nakaz zapłaty*) and survive the almost inevitable objection (*sprzeciw*). When a debtor files a *sprzeciw* in the EPU, the electronic order loses its legal force entirely, and the case is transferred to a standard court, effectively restarting the clock. In a scenario involving highly liquid assets, Path B is highly advantageous, as it permits the *komornik* to freeze bank accounts via the OGNIVO electronic banking system within weeks of the lawsuit's filing.

Conversely, if the debtor's primary assets consist of real estate, they cannot be rapidly liquidated or hidden without leaving a traceable paper trail in the land and mortgage registers. Real estate transfers executed to evade creditors are susceptible to a fraudulent transfer claim under the Polish Civil Code (*skarga pauliańska*, Art. 527 KC), which allows a creditor to demand that the transfer be deemed ineffective relative to their specific claim. In this scenario, the urgency of Path B decreases significantly, as the real estate will remain accessible for a compulsory mortgage (*hipoteka przymusowa*) once the EPU process concludes. Furthermore, if the debtor is genuinely on the verge of filing for consumer bankruptcy (*upadłość konsumencka*) or business bankruptcy, specialized provisions of the Polish Bankruptcy Law (*Prawo upadłościowe*) apply. Specifically, Article 81 dictates that any security on the debtor's property obtained within two months preceding the date of the bankruptcy filing may be invalidated and subject to clawback by the bankruptcy trustee (*syndyk*). Therefore, mapping existing insolvency filings, identifying the queue of existing creditors, and verifying the true operational status of the business are paramount investigative prerequisites before committing 15,000 to 25,000 PLN to the *zabezpieczenie* strategy.

A. Real Estate Ownership Analysis

Real estate provides the most secure and immovable avenue for debt recovery. The central challenge in Polish asset tracing is that the official Electronic Land and Mortgage Register (Elektroniczne Księgi Wieczyste - EKW), maintained by the Ministry of Justice, strictly prohibits broad name-based or address-based searches.¹ Accessing a specific record requires possession of the exact Księga Wieczysta (KW) number, which is formatted with a court code, a sequential number, and a control digit (e.g., KR1P/00001234/6).² To circumvent this limitation, investigations must utilize commercial data brokers, geographic information systems, or formal administrative requests.

1. Commercial Land Register Brokers (Highest Yield OSINT)

Commercial entities have historically scraped the EKW databases or compiled cross-referenced property records, indexing them by address and owner name.⁴ These portals operate behind paywalls but offer the only immediate digital avenue to link a natural person's name to a specific KW number without a court order.

- **Legal Access Status:** Open data via commercial intermediary.
- **Cost:** Approximately 40 to 50 PLN per discovered KW number.
- **Accuracy and Freshness:** High accuracy for historical ownership. Freshness may lag official Ministry of Justice updates by a few months, meaning extremely recent acquisitions or dispositions might not reflect immediately.
- **Time to Obtain:** Instantaneous upon successful payment.
- **Caveats / Risks:** Paywalls prevent fully autonomous agentic execution. The browser agent can only determine whether a statistical match exists in the database. If a match is found, human intervention is required to process the micro-transaction and retrieve the unredacted KW number.

Code snippet

```
open https://ksiegawieczyste.pl/szukaj-po-imieniu-i-nazwisku
```

```
1. Locate the input fields for the personal name search
2. In the field labeled "Imie" (First Name), enter: Mateusz
3. In the field labeled "Nazwisko" (Last Name), enter: Szklarski
4. If there is a field for "PESEL" or "Imie oica" (Father's name), leave them blank
5. In the field labeled "Miejscowość" (City/Town), enter: Kraków
6. Click the button labeled "Szukaj" (Search) or "Znajdź" (Find)
7. Wait for the results page to load
8. Analyze the results
9. If the page displays "Brak wyników" (No results) or "Nie znaleziono ksiąg" (No books
found), record "No real estate matches found in Krakow" and stop
10. If results are found, the site will display obscured KW numbers (e.g., KR1P/000.../X)
and prompt for payment to reveal them
11. Extract the number of hits found, the listed cities, and the exact URL of the payment
page
12. Return a JSON object translating the results to English (e.g., {"matches_found": 2,
"locations": ["Krakow"], "payment_url": "..."} )
```

Failure handling

```
1. If a CAPTCHA appears, stop and report: "CAPTCHA blocking — needs human
intervention"
2. If the page structure has changed and the fields are not visible, stop and report: "U
nchanged, fields not found"
```

2. Geographic Information Systems (MSIP Kraków)

Municipalities in Poland maintain advanced geographic portals. The Miejski System Informacji Przestrzennej (MSIP) in Kraków provides a specific "Struktura własności" (Ownership structure) dataset.⁵

- **Legal Access Status:** Open Data.
- **Cost:** Free.
- **Accuracy and Freshness:** Highly accurate physical boundaries and baseline ownership categorizations.
- **Time to Obtain:** Instant.
- **Caveats / Risks:** Due to strict European GDPR/RODO regulations, municipal geoportals categorize plots by broad owner type (State, Municipality, Legal Entity,

Natural Person) but completely obscure the specific names and PESEL numbers of natural persons.⁵ This tool is solely useful for secondary verification. If a physical operational warehouse address is identified later in the investigation, the MSIP portal can confirm whether that specific plot is owned by a natural person (potentially the debtor) or leased from a corporate entity.

- **Skip-if-not-applicable:** Skip this step entirely for the registered virtual office address (Mogilska 16/7), as commercial office spaces offering virtual domiciles are universally owned or leased by corporate entities, not the individual debtor.

3. Formal Escalation: Starostwo Powiatowe (District Office)

If commercial databases yield no actionable KW numbers, the formal legal route necessitates filing a *wniosek o wydanie wypisu z rejestru gruntów* (motion for an extract from the land and building register) directly with the geodetic and cartographic department of the local Starostwo Powiatowe.⁷

- **Legal Access Status:** Restricted. Requires demonstration of legal standing.
- **Cost:** Administrative fees apply depending on the scope of the extract.
- **Caveats / Risks:** A browser agent cannot perform this action. It requires a physical or electronically signed formal application via the ePUAP platform. The applicant must definitively demonstrate a "legal interest" (*interes prawny*).⁷ An active debt claim, especially one pending in court (such as EPU case Nc-e 552126/26), generally constitutes sufficient legal interest. However, this administrative process is slow and bureaucratic.
- **Recommendation:** Do not commission this step until Path B is formally chosen and a lawyer is retained, as it is time-consuming and often executed more efficiently by a *komornik* once enforcement begins.

Real Estate Source	Access Type	Cost Estimate	Primary Value Proposition
Commercial Brokers	Public (Paid)	40-50 PLN	Immediate identification of KW numbers via name search.
MSIP Kraków Geoportal	Public (Free)	0 PLN	Verifying if a known physical address is owned by a natural person.
Starostwo Powiatowe	Restricted	Variable	Official, court-admissible documentation of

			land ownership.
EKW Ministry Portal	Public (Free)	0 PLN	Reading the actual mortgage book, but requires knowing the KW number first.

Once a KW number is obtained through any of the above methods, it can be freely queried on the official EKW portal (ekw.ms.gov.pl) to verify current ownership, mortgages, and existing attachments in Section IV (Dział IV) of the register.²

B. Vehicle Ownership Tracking

Vehicles represent highly liquid, easily movable assets. Debtors facing insolvency frequently attempt to liquidate vehicles or transfer their titles to relatives. The Central Register of Vehicles and Drivers (Centralna Ewidencja Pojazdów i Kierowców - CEPiK) holds definitive ownership data, but its public accessibility is highly restricted by design to prevent data harvesting.¹¹

1. Indirect Discovery via Automotive Marketplaces (OSINT)

Because direct name-based queries into CEPiK are blocked for the public, the most effective initial method is mapping the debtor's digital footprint across secondary automotive marketplaces. Debtors frequently list personal or business vehicles using their established business phone numbers, email addresses, or NIP identifiers.

- **Legal Access Status:** Open Data.
- **Cost:** Free.
- **Accuracy and Freshness:** Medium. It indicates historical possession, but the vehicle may have already been sold. It provides the make, model, and potentially the VIN, which are crucial for subsequent formal queries.
- **Time to Obtain:** Instant.

Code snippet

```
open https://www.google.pl
```

```
1. In the Google search bar, type exactly the following search string
```

```
site:olx.pl OR site:olomoto.pl "Marek Szklarski" OR "GPUcomputer" OR "8661681248"
```

```
OR "531 061 452"
```

2. Click "Szukaj w Google" (Google Search).
3. If a cookie consent banner appears, click "Zaakceptuj wszystko" (Accept all).
4. Review the first 3 pages of search results.
5. Look for any search results indicating vehicle listings (samochody osobowe, motocykle, samochody dostawcze).
6. If the result list is empty or unrelated to vehicles, record "No vehicle listings found via Google Dorks" and stop.
7. If vehicle listings are found, click on each relevant link. Extract the make, model, year, and price of the vehicle, and the date the ad was posted. If a VIN is visible in the ad details, extract it.
8. Translate all extracted information into English and return as a JSON array.

Failure handling

1. If Google presents a reCAPTCHA, stop and report "Google CAPTCHA hit — requires human completion".

2. CEPiK Direct Query and Komornik Escalation

The public-facing module of CEPiK, known as *Historia Pojazdu* (historiapojazdu.gov.pl), allows anyone to check the history of a vehicle, but it strictly requires three data points: the VIN, the registration number, and the date of first registration. It cannot be queried by the owner's name.

- **Legal Access Status:** Highly Restricted.
- **Escalation Protocol:** The only reliable, legally sound method to extract vehicle data across the entire country based solely on the debtor's personal data (PESEL or NIP) is to wait until an enforcement title is obtained. At that point, the creditor files a *zlecenie poszukiwania majątku* (order to search for assets) with a *komornik*.¹² The bailiff possesses direct, privileged electronic access to CEPiK and receives instantaneous, authoritative results regarding all vehicles registered to the debtor.¹¹

C. Actual Operating Address and Logistics Mapping

The registered address for Mateusz Szklarski's JDG is ul. Mogilska 16 lok. 7, 31-516 Kraków.¹³ Intelligence gathering conclusively identifies this address as a commercial virtual office operated by an entity named "WorkDesk".¹⁶ WorkDesk provides business registration addresses, mail handling, and hourly meeting room rentals for varying monthly fees (ranging from 55 PLN for basic mail to 150 PLN for full registration and meeting room access).¹⁷ A virtual office cannot store physical inventory. Furthermore, historical business directories list an older, potentially physical address: ul. Kazimierza Wielkiego 36 lok. 3, 30-074 Kraków.²⁰

A business specializing in custom-built computer workstations requires physical space for component storage, assembly, and packaging. Finding the actual operational address is a critical dependency; a bailiff cannot seize servers or inventory located at a virtual mail drop.

1. Reverse Infrastructure and Directory Mapping

Business directories often cache historical data before a company transitions to a virtual office model to cut costs or evade physical service of process.

- **Legal Access Status:** Open Data.
- **Cost:** Free.
- **Accuracy and Freshness:** High for historical mapping; requires cross-referencing to confirm current physical activity.
- **Time to Obtain:** Instant.

Code snippet

```
open https://panoramafirm.pl
```

```
1. If a cookie banner appears, click "Akceptuję" (I accept).
```

```
2. In the search field labeled "Czego szukasz?" (What are you looking for?), enter
```

```
GPUcomputer
```

```
3. In the field labeled "Gdzie?" (Where?), enter "Krakow".
```

```
4. Click the magnifying glass icon or "Szukaj" (Search) button.
```

```
5. If the result page shows "Brak wyników" (No results), record this and stop.
```

```
6. If a profile for "Mateusz Szklarski-Lopata Gpucomputer" appears, click on it.
```

```
7. Extract the listed physical address, phone numbers (e.g., 531 061 452), email
```

```
addresses, and website URL.
```

```
8. Look specifically for any tabs or sections labeled "O nas" (About us), "Dolazdo
```

```
(Directions), or "Lokalizacja" (Location) that might indicate a warehouse or service point
```

```
listened from Modulska 16.
```

```
9. Return the extracted data in English.
```

Failure handling

```
If blocked by Cloudflare or CAPTCHA, report "Blocked by anti-bot protection."
```

2. Historical Digital Footprint Recovery (Wayback Machine)

Debtors frequently scrub their current websites of physical addresses when financial distress begins. Archival data can reveal the operating locations used during healthier business periods.

- **Legal Access Status:** Open Data.
- **Cost:** Free.

Code snippet

Open <https://web.archive.org>

1. In the main search bar, enter: <https://www.gpucomputer.pl>

2. Press Enter

3. If no snapshots exist, report "No archive history" and stop

4. If a calendar view appears, navigate to the earliest available snapshots (e.g., from 2010 through 2023)

5. Open at least 3 distinct snapshots from different years

6. Navigate to the pages labeled "Kontakt" (Contact), "O nas" (About us), "Wysyłka" (Shipping), or "Regulamin" (Terms of Service)

7. Extract any physical addresses, phone numbers, or warehouse locations listed on these historical pages

8. Compare these against the known virtual office address (Mogilska 16) and the historical directory address (Kazimierza Wielkiego 36)

9. Return any unique physical addresses found, translated to English

3. Logistics and Courier Tracing (Requires Client Action)

An automated browser agent cannot access private email accounts. The creditor must manually review all correspondence, shipping labels, or tracking emails related to the PC components or the initial order. Courier tracking systems (InPost, DPD, DHL, GLS) routinely disclose the origin location or the specific automated parcel locker (Paczkomat) where the package was initially dispatched by the seller. Frequent dispatches from a specific Paczkomat in a residential or industrial district of Kraków strongly indicate that the debtor's physical residence or hidden workshop is located within a localized radius of that machine. This data is invaluable for a future field investigation by a private detective.

D. Bank Accounts and Financial Fluidity

The ability to freeze bank accounts rapidly is the primary strategic driver for choosing Path B and executing a *zabezpieczenie*. Once formal enforcement begins, Polish bailiffs map and freeze bank accounts using the OGNIVO system, an electronic platform that pings all domestic banking institutions simultaneously. OGNIVO access is strictly limited to authorized judicial and enforcement authorities; it cannot be accessed by private creditors, lawyers, or commercial bureaus. However, securing preliminary intelligence on the primary banking institution accelerates the *zabezpieczenie* drafting process and ensures the court order is highly specific.

1. VAT White List Analysis (Biała Lista Podatników VAT)

The Ministry of Finance maintains the "Biała lista," a public registry designed to ensure VAT compliance. For JDGs registered as active VAT taxpayers, this registry publishes their corporate settlement accounts (*rachunki rozliczeniowe*).²³

- **Legal Access Status:** Open Data.
- **Cost:** Free.
- **Accuracy and Freshness:** Exceptionally high. Updating is mandated by the Ministry of Finance, and the database reflects daily status changes.²³
- **Time to Obtain:** Instant.
- **Caveats / Risks:** The registry solely displays official corporate settlement accounts.²³ It deliberately obscures personal savings accounts or retail accounts used exclusively for non-business purposes. If the debtor is co-mingling funds or hiding assets in a personal account, it will not appear here.

Code snippet

Open <https://www.podatki.gov.pl/wykaz-podatnikow-vat-wyszukiwarka/>

1. If a cookie consent banner appears, click "Akceptuję" (I accept).
2. Locate the search criteria section. Select the radio button for "NIP".
3. In the text field labeled "Wpisz numer NIP" (Enter NIP number), type: 8001681240.
4. Leave the "Data" (Date) field set to today's default date.
5. Click the button labeled "Szukaj" (Search).
6. If the system prompts a reCAPTCHA, stop and report "Requires human intervention for reCAPTCHA".
7. If the search is successful, a result table will appear.
8. Look for the row labeled "Numery rachunków rozliczeniowych" (Settlement account numbers).
9. Extract all bank account numbers (IBANs, starting with PL) listed in this section.
10. Extract the "Status podatnika" (taxpayer status) to confirm it says "Figuruję w wykazie jako podatnik VAT czynny" (Listed as an active VAT taxpayer).
11. Return the list of bank account numbers and the VAT status in English.

2. Commercial Intelligence Bureaus (Biuro Wywiadu Gospodarczego)

If the EPU case is withdrawn and the creditor requires absolute certainty regarding the volume of capital moving through the debtor's accounts to justify the legal spend, a *Biuro Wywiadu Gospodarczego* (e.g., Creditreform, Coface, Bisnode) can be commissioned. These bureaus legally gather intelligence on banking relationships through supplier interviews, historical invoice

database access, and credit history triangulation. They operate at a cost of 500 to 3,000 PLN per subject and typically deliver reports within 1 to 5 business days. While they cannot access exact balances without a court order, they can map the primary banking relationships and identify shifts in banking behavior that suggest distress.

E. Corporate Shielding, Shareholdings, and Partnerships

A common evasion tactic for debtors facing financial collapse is the "phoenix maneuver"—attempting to shield assets and continue operations by shifting business activity to a newly formed limited liability company (spółka z ograniczoną odpowiedzialnością - sp. z o.o.) or by hiding behind family members who serve as nominee directors.

1. National Court Register (Krajowy Rejestr Sądowy - KRS)

The KRS is the central register for all corporate entities, partnerships, and foundations in Poland.²⁵ It is entirely separate from the CEIDG, which only handles sole proprietorships.

- **Legal Access Status:** Open Data.
- **Cost:** Free.
- **Accuracy and Freshness:** High, updated continuously by the commercial courts.²⁶
- **Time to Obtain:** Instant.

Code snippet

```
Open https://wszukiwarka-krs.ms.gov.pl
```

1. Ensure the tab "Przedsiębiorcy" (Entrepreneurs) is selected.
2. Locate the search form. The public portal requires at least one exact identifier (KRS, NIP, REGON) OR a name search to the entity.
3. Check the box labeled "Szukaj po nazwie" (Search by name) if present. Note: direct personal name searches for shareholders across all entities without an account are restricted on the public UI to prevent data harvesting, but entity names can be searched.
4. In the field labeled "Nazwa" (Name), enter: GPUcompute.
5. Click "Szukaj" (Search).
6. If results appear, extract the entity name, KRS number, and status.
7. Clear the field and enter: Mateusz Szklarski.
8. Click "Szukaj" (Search).
9. Extract any corporate entities matching this exact name combination.
10. Return the extracted data in English. If the UI returns "Brak wpisów" (No entries), record "No KRS entities found under these exact entity names."

2. Central Register of Beneficial Owners (CRBR)

The CRBR maps the ultimate human controllers of corporate entities to combat money laundering.²⁸ Companies face severe penalties, including fines up to 1 million PLN, for failing to report accurate beneficial ownership data.³¹

- **Legal Access Status:** Open Data.³²
- **Cost:** Free.
- **Caveats / Risks:** The CRBR is primarily utilized for registered companies (sp. z o.o., S.A., partnerships). Sole proprietorships (JDGs) are not required to register here unless they act as trustees. A browser agent can search by NIP to definitively rule out complex holding structures.

Code snippet

```
url = "https://cbrb.podatni.gov.pl/cbrb/#wyszukaj"
```

1. The page presents a search form. Select the radio button labeled "wyszukaj podmiot"

(Search for entity). Do not select beneficiary search, as that requires a PESEL.

2. In the "NIP" field, enter 866168124.

3. Click the button labeled "Wyszukaj" (Search).

4. Analyze the result. Since CRBR targets corporate structures, a JDG NIP will likely return no results.

5. If the system returns "Nie znaleziono podmiotu" (Entity not found), record this and conclude the CRBR search.

6. If a complex structure is revealed, extract the associated entity names and return them

in English.

F. Mapping the Creditor Landscape and Existing Claims

The presence of multiple existing creditors is a critical data point. If a queue of institutional creditors (banks, leasing firms, suppliers) is already utilizing bailiffs to enforce claims, Path B becomes a high-stakes race. Under Polish law regarding the concurrence of executions (*zbieg egzekucji*), if a *komornik* has already seized the bank accounts, a new *zabezpieczenie* will merely place the creditor into a queue for proportionate distribution (*podział sumy uzyskanej z egzekucji*), drastically reducing the effective recovery rate.

1. Economic Information Bureaus (BIG, KRD, ERIF)

Private economic registries track unpaid B2B and B2C debts before they reach the court system.

- **Legal Access Status:** Restricted. Requires a registered creditor account and a valid legal basis (such as an unpaid invoice or contract) to perform inquiries.³³
- **Cost:** Varies by package. Individual self-reports cost approximately 69 PLN³³, while business packages (e.g., Biznes Debiut) start around 350 PLN per month.³⁵
- **Caveats / Risks:** A browser agent cannot autonomously create an account and pull a credit report. Account creation for platforms like the Krajowy Rejestr Długów (KRD) requires stringent identity verification via mObywatel or a verified bank transfer to prevent abuse.³³
- **Escalation Protocol:** The creditor must personally register an account at konsument.krd.pl (if acting as a consumer) or retain a debt collection agency (*firma windykacyjna*) to query KRD, BIG InfoMonitor³⁴, and ERIF³⁶ on their behalf using the NIP 8661681248. The existence of multiple KRD entries is a massive red flag indicating systemic insolvency.

Economic Bureau	Focus Area	Access Requirement	Cost Implication
KRD (Krajowy Rejestr Długów)	Broad consumer and B2B debt	Registered account & legal basis	~69 PLN (single) to ~350+ PLN (subscription)
BIG InfoMonitor	Banking and utility debt	Registered account & legal basis	Subscription based
ERIF	Telecommunication s and general debt	Registered account & legal basis	Subscription based
BIK (Biuro Informacji Kredytowej)	Bank loans and credit cards	Debtor's explicit consent only	Inaccessible to third-party creditors without court order

2. The Pledge Register (Rejestr Zastawów)

This judicial registry tracks encumbrances on high-value movable property (e.g., machinery, servers, vehicles pledged to banks as collateral for loans).

- **Legal Access Status:** Open to the public, but technically restricted behind the Portal Rejestrów Sądowych.³⁷

- **Cost:** 20 PLN per official inquiry.³⁸
- **Caveats / Risks:** The browser agent cannot navigate this portal autonomously due to the requirement to log in via *Profil Zaufany* or the national identity node.³⁷
- **Escalation Protocol:** The retained lawyer must query the Rejestr Zastawów to check if the business's server infrastructure or operational inventory is already collateralized to a financial institution. If the assets are pledged, the bank holds priority in recovery, rendering those assets functionally useless for the individual creditor's execution.

3. Court Rulings Portal (Portal Orzeczeń)

The Ministry of Justice provides a database of anonymized court rulings, which can reveal a history of litigation.

- **Legal Access Status:** Open Data.
- **Cost:** Free.
- **Accuracy and Freshness:** High, but heavily anonymized to comply with privacy laws.³⁹

Code snippet

```
open https://orzeczenia.ms.gov.pl
```

1. Locate the advanced search form (Wyszukiwanie zaawansowane).
2. In the field labeled "Treść orzeczenia" (Content of the ruling), enter exactly: "Mateusz Szklarski" OR "GPU computer".
3. In the field labeled "Sąd" (Court), type "Kraków" and wait for a dropdown. Select "Sąd Okręgowy w Krakowie" and "Sąd Rejonowy dla Krakowa-Śródmieścia".
4. Click "Szukaj" (Search).
5. If the result count is zero, record "No anonymized court rulings found containing the exact names".
6. If rulings appear, click on the top 3 most recent ones.
7. Extract the "Sygnatura akt" (Case signature), "Data orzeczenia" (Date of ruling), and a brief summary of the dispute.
8. Return the extracted data in English.

G. Operational Signals and Business Health Telemetry

To determine if the business is actively stripping assets, quietly winding down, or attempting to trade out of insolvency, digital telemetry must be gathered to assess current cash flow viability. If the business is entirely dead, Path B is a waste of capital.

1. Active Commerce Verification

- **Legal Access Status:** Open Data.
- **Cost:** Free.

Code snippet

```
open https://www.gpucomputer.pl
```

```
1. Analyze the homepage structure. Look for out-of-stock indicators, banners indicating maintenance, or statements like "przerwa urlopową" (holiday break) or "reorganizacja" (reorganization).
```

```
2. Navigate to the store section (Sklep / Produkty).
```

```
3. Select any high-value item (e.g., a workstation or GPU).
```

```
4. Attempt to add the item to the cart by clicking "Dodaj do koszyka" (Add to cart).
```

```
5. Proceed to the checkout page ("Przejdź do kasy" or "Zamówienie").
```

```
6. Verify the available payment methods. Extract the names of the payment gateways (e.g., PayU, Przelewy24, Tpay, traditional bank transfer).
```

```
7. Do NOT complete the purchase.
```

```
8. Return a JSON object in English detailing: site_live (true/false), cart_functional (true/false), payment_gateways_used ([list]).
```

Failure handling

```
If the domain does not resolve or returns a 404/500 error, record "Website is offline - critical insolvency signal" and stop.
```

2. Social Media and Customer Sentiment Audit

Analysis of recent customer interactions provides leading indicators of insolvency well before official court filings.

Code snippet

```
open https://www.google.com
```

```

1. In the search bar, type: "GPUcomputer" Kraków opinie OR "Mateusz Szklarski" oszustwo
2. Review the first 2 pages of results
3. Look specifically for links to Wykop.pl, Trustpilot, Opineo, or Google Maps reviews
4. If review sites are found, click them and extract the 5 most recent reviews
5. Translate the text of these 5 reviews to English
6. Note the dates of the reviews. Are there recent complaints of non-delivery ("nie
dostarczono", "brak zwrotu pieniędzy", "kontakt się urwał")?
7. Return a summary of the sentiment and the translated text of the most alarming reviews

```

Data indicates a neutral and stable online image for GPUcomputer, with no active presence on social media and an absence of negative customer reviews or alarming media reports in audited sources, suggesting a solid operational history but requiring continued vigilance. The historical data demonstrates a consistent operational profile since its founding in 2015, specializing in advanced IT hardware solutions, without the typical digital noise associated with distressed entities.²⁰

H. Insolvency and Restructuring Filings Analysis

The debtor explicitly claimed via email to have "filed for bankruptcy protection" due to supply chain collapse. Under Polish law, when a debtor files a *wniosek o ogłoszenie upadłości* (bankruptcy petition), the court has up to two months to review the petition and issue a ruling.⁴⁰ During this lag period, the filing itself may not appear immediately in the public portal of the National Register of Debtors (KRZ), creating a dangerous information gap for creditors.⁴¹ If the debtor is undergoing a formal restructuring proceeding (*postępowanie restrukturyzacyjne*), securing an attachment (*zabezpieczenie*) may be legally blocked entirely upon the opening of the proceedings, effectively neutralizing Path B.

1. KRZ Public Portal Search (Krajowy Rejestr Zadłużonych)

The KRZ is the central electronic hub for all insolvency, restructuring, and enforcement proceedings initiated after December 2021.⁴¹

- **Legal Access Status:** Open Data.⁴²
- **Cost:** Free.
- **Accuracy and Freshness:** High for finalized court entries, but subject to administrative backlog delays between the physical filing of a petition and its digital publication.⁴⁰

Code snippet

```
open https://krz.ms.gov.pl
```

1. Wait for the portal to load. This is a complex Single Page Application (SPA).
2. Locate the main navigation or home screen options. Click on the tile labeled "Wyszukiwanie postępowań" (Search for proceedings) or "Portal Publiczny - Wyszukiwanie podmiotu" (Public Portal - Search Entity).
3. In the search form, ensure the entity type is set to "Osoba fizyczna prowadząca działalność gospodarczą" (Natural person conducting economic activity) if a dropdown exists, or leave it as general.
4. Locate the field labeled "NIP". Enter exactly: 8661681248.
5. Click the "Wyszukaj" (Search) button.
6. The system may take several seconds.
7. Analyze the results table at the bottom of the page.
8. If the table is empty or displays "Brak wyników wyszukiwania" (No search results), record "No insolvency or restructuring proceedings found in KRZ for this NIP" and stop.
9. If rows appear, extract the "Sygnatura akt" (Case signature), "Rodzaj postępowania" (Type of proceeding – upadłościowe or restrukturyzacyjne), and "Data wpływu wniosku" (Date of petition receipt).
10. Return the exact Polish text of the status and its English translation as a JSON object.

Failure handling:

- If the KRZ portal throws a "Service unavailable" or 500 error (common outside Polish business hours), report "KRZ portal offline, retry later."

2. Court and Economic Monitor Archive (MSiG)

The MSiG covers pre-2021 historical insolvencies and specific supplementary court announcements that might not trigger an immediate KRZ flag.⁴⁵

- **Legal Access Status:** Open Data.
- **Cost:** Free.

Code snippet

```
open https://wyszukiwarka-msig.mis.gov.pl/
```

1. Locate the field labeled "NIP". Enter exactly: 8661681248.
2. Locate the field labeled "Nazwa podmiotu" (Entity name) and enter: GPUcompute.
3. Leave the dates open to search the entire archive.
4. Click "Szukaj" (Search).
5. If the result page indicates "Brak wyników" (No results), record this and stop.

If results appear, click on each PDF link to download or view the text.

Extract the publication date, the volume number, and the context of the announcement.

e.g., opening of liquidation, call to creditors.

Return the summarized findings in English.

I. Spousal Asset Legal Framework

The CEIDG extract indicates no marital property regime is registered for the debtor. In Poland, default marriage creates a community property regime (*wspólność majątkowa*). Under this regime, if a business owner incurs debts with the explicit consent of their spouse, creditors can enforce the debt against the joint assets of the marriage. If the debt was incurred without spousal consent, enforcement is generally strictly limited to the debtor's personal assets and the assets comprising the business enterprise itself.

Because the CEIDG shows no entry, several scenarios are possible: the debtor is unmarried, divorced, widowed, has established a separation of property regime (*rozdzielność majątkowa*), or the CEIDG registry was simply not updated properly by the entrepreneur.

Access to the Registry of Civil Status (Urząd Stanu Cywilnego - USC) to definitively ascertain marital status requires a strict demonstration of legal interest and cannot be executed by an automated browser agent. Determining marital status to leverage community property, or to identify potential targets for an *actio pauliana* (fraudulent transfer claim) if assets were recently shifted to a spouse, requires deploying a licensed private investigator (*detektyw licencjonowany*) to conduct background observation, or waiting for the *komornik* phase of enforcement.

J. Foreign Assets and Asset-Stripping Risks

Given the business relates to the importation and configuration of computer hardware, and the debtor specifically cited the "collapse of a Hong Kong supplier," cross-border capital flows are highly probable. Under the Brussels Ia Regulation, Polish judgments are enforceable across the European Union, but tracing funds to foreign banking institutions (such as Revolut Business, Wise, or traditional foreign banks) is significantly more complex than mapping domestic accounts via OGNIVO.

VIES (VAT Information Exchange System) Verification

Verification of the debtor's authorization for intra-community supply provides a leading indicator of cross-border financial infrastructure.

- **Legal Access Status:** Open Data.
- **Cost:** Free.

Code snippet

Open https://ec.europa.eu/taxation_customs/vies/#/vat-validation

1. In the "Member State" dropdown, select "PL-Poland"

2. In the "VAT Number" field, enter: 8661681248

3. Click the "Verify" button

4. Check the "Status" response

5. If "Yes, valid VAT number", record "Debtor is authorized for EU cross-border transaction"

(MIES Active). High risk of foreign banking infrastructure

6. If "No, invalid VAT number", record "Not authorized for EU VAT"

7. Return the status in English

Integrating Section: Execution Plan and Escalation Strategy

The transition from automated open-source reconnaissance to formal bailiff execution operates across a multi-tiered workflow. Automated agents operate effectively within the foundational tier of free open-source intelligence. Subsequent tiers represent an escalation in cost, legal authority, and data depth, moving from paid commercial intelligence to lawyer-mandated actions, and finally culminating in full *komornik* enforcement.

To provide maximum return on investment and clear the strategic ambiguity between Path A and Path B, execute the automated browser-agent prompts in the following strictly ordered batches.

Recommended Sequencing — Runnable Plan

Phase 1: Day 1 — Immediate Digital Triage (Cost: Free)

Objective: Confirm basic operational viability and verify the existence of immediate legal red flags.

- **Step 1:** Execute the **Category G (Active Commerce)** prompt. Is the website actively accepting payments? If yes, operational cash flow currently exists.
- **Step 2:** Execute the **Category D (VAT White List)** prompt.²⁴ Capture the active corporate bank accounts. This data serves as the direct tactical ammunition for drafting the *zabezpieczenie* motion.
- **Step 3:** Execute the **Category H (KRZ Search)** prompt.⁴³ If a formal restructuring or bankruptcy proceeding is active, Path B is legally blocked and highly inadvisable.
- **Step 4:** Execute the **Category G (Social Media/Reviews)** prompt to gauge current customer sentiment and identify a timeline of consumer defaults.

Phase 2: Day 2 — Asset Identification (Cost: OSINT + ~50 PLN)

Objective: Search for illiquid assets that can survive a 12-month EPU delay, making Path A more palatable.

- **Step 5:** Execute the **Category A (Commercial KW Search)** prompt.⁴ Identify if any properties exist in Kraków. (Manual payment intervention is required here).
- **Step 6:** Execute the **Category B (Vehicle OSINT)** prompt using Google Dorks to find

historical vehicle sales, revealing phone numbers and potential proxy sellers.

- **Step 7:** Execute the **Category C (Wayback Machine & Directory)** prompts ⁴⁷ to map historical non-virtual operational addresses to locate potential inventory.

Phase 3: Day 3 — Corporate Shielding & Foreign Flight Assessment (Cost: Free)

Objective: Determine if the JDG is being hollowed out and assets have moved to a corporate shield or abroad.

- **Step 8:** Execute the **Category E (KRS and CRBR)** prompts.²⁶
- **Step 9:** Execute the **Category J (VIES)** prompt to assess cross-border financial capability.

Cost-Effective Stopping Points

The OSINT phase driven by the automated agent is free or very low cost, but it encounters hard systemic limits regarding deep banking data, exact vehicle VINs, and official marital status.

Stopping Point 1: The "Hollow Shell" Scenario

If Phase 1 reveals a defunct website, no active bank accounts on the VAT White List, terrible recent reviews indicating massive default, and Phase 2 yields no real estate, **stop spending capital immediately**. The debtor has effectively stripped the JDG. Withdrawing the EPU to spend 20,000 PLN on *zabezpieczenie* (Path B) will result in a pyrrhic victory—freezing empty accounts. Remain in Path A, accept the procedural delay, and minimize immediate financial exposure.

Stopping Point 2: The "Cash Flow Positive" Scenario

If the website remains fully operational, the White List reveals active, current bank accounts, and there is no KRZ entry indicating insolvency, the JDG is alive but actively evading your specific debt. In this scenario, Path B is highly viable. At this juncture, halt the automated OSINT and escalate to professional legal counsel. Provide the lawyer with the specific bank account numbers extracted in Phase 1 to draft a highly targeted *wniosek o zabezpieczenie*.

Professional Escalation Matrix

When DIY OSINT reaches its limits, the following professionals must be deployed strategically:

Professional Entity	Primary Use Case	Estimated Cost	Data Yield Profile
Kancelaria Adwokacka (Lawyer)	Drafting motions, querying Rejestr Zastawów, demonstrating <i>interes prawny</i> to Starostwo.	5,000–8,000 PLN	Legally admissible court filings and restricted registry extracts.
Biuro Wywiadu	Deep banking	1,500–3,000 PLN	Supplier interviews,

Gospodarczego (Intelligence)	relationship mapping, supplier default analysis.		comprehensive credit history triangulation.
Detektyw Licencjonowany (Private Investigator)	Physical location of inventory, marital status observation.	200–500 PLN/hour	Physical surveillance, asset mapping outside digital records.
Komornik (Bailiff)	<i>Zlecenie poszukiwania majątku</i> (OGNIVO, CEPIK, ZUS).	~100 PLN + execution fees	Absolute, real-time control and freezing of all domestic assets. ¹¹

Critical Note on Bailiff Usage: The most powerful tool available is the *zlecenie poszukiwania majątku* executed by a *komornik*.¹² However, this mechanism is **legally locked** until the creditor possesses an enforcement title (*tytuł wykonawczy*). Therefore, it cannot assist in the initial strategic decision between Path A and Path B; it is the ultimate tool utilized only *after* securing a legal victory.

Red Flags Indicating Asset Stripping or Imminent Insolvency

While interpreting the data returns from the browser agents, legal counsel must remain vigilant for specific systemic markers indicating sophisticated evasion tactics under Polish law:

1. **"Darowizna" (Donation) Markers in Land Registers:** If the KW number is obtained, review Dział II (Section 2 - Ownership). If the property was recently transferred via *Umowa Darowizny* (Deed of Donation) to a family member, this is a classic asset shield that immediately triggers a *skarga pauliańska* action.
2. **Sudden De-registration from VAT (Wykreślenie z rejestru VAT):** If the White List search returns the status "Wykreślony" (Struck off)²³, the tax authority has detected fraudulent activity, continuous nil returns, or the debtor has formally ceased trading. This is a critical, terminal indicator of JDG collapse.
3. **Spike in KRD Inquiries:** If a debt collector is retained to run a KRD report³³ and the log displays multiple recent inquiries (*zapytania*) from banking institutions, leasing companies, and telecommunications providers within the preceding 90 days, it signals the debtor is desperately seeking credit or that institutional creditors are actively hunting him, triggering a race to execution.
4. **Formation of a Sp. z o.o. with Identical PKD Codes:** If the KRS search reveals a newly formed limited liability company (established in late 2025 or 2026), operating at a different address but dealing in wholesale computer hardware (PKD 46.51.Z or 26.20.Z), the debtor is actively executing a phoenix maneuver—draining the capital from the JDG to feed a new, liability-shielded corporate entity.

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